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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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Organization: IAPP

General Comment

Please see attached for IAPP's comment.

Attachments

IAPP OSTP comment final 3.13.25

IAPP comment to OSTP AI Action Plan final 3.13.25

March 13, 2025

Subject: RFI on the Development of an Artificial Intelligence (AI) Action Plan

To Whom It May Concern:

IAPP appreciates the opportunity to respond to the National Science Foundation's (NSF) and Office of Science and Technology Policy's (OSTP) request for information on the development of an AI Action Plan for the U.S. Administration.¹

IAPP is a global policy neutral non-profit organization with a mission to define, promote and improve the professions of privacy, AI governance, and digital responsibility. Since our founding in 2000, our membership has grown to include over 87,000 individual professionals across 158 countries. Over these 25 years, professionals have signed up for more than 125,000 trainings and qualified for over 91,000 certifications.

AI governance professionals are essential to long-term AI growth.

IAPP's policy neutral posture is rooted in a simple idea: no matter how legal rules, norms, and principles evolve, a community of capable and connected professionals is necessary to meet the challenges and growth opportunities where data, technology, and human interests intersect. Measuring and managing tech risks and benefits means staying up to date on evolving standards for privacy, cybersecurity law, and the interdisciplinary field of AI governance.

Regardless of the underlying AI policy objective, IAPP believes professionalization is a precondition to lasting and successful innovation, which requires a right-sized understanding of risk.² A workforce of qualified professionals who understand the interplay of AI benefits and risks is necessary to foster better business outcomes tailored for long-term leadership.

Recognizing the urgent need for AI governance professionals to build the trust in AI systems necessary to scale AI adoption across the economy, IAPP launched our AI Governance Center in 2023.³ Soon thereafter, the AI Governance Professional (AIGP) certification entered the market as the first credential of its kind. Since then, individuals and organizations have signed up for 12,000 AIGP trainings with a current total of 2,370 AIGP-certified professionals.

This strong demand highlights the need within organizations to benchmark and build processes that keep up with the breakneck pace of AI standards and best practices. Like all IAPP certifications, the AIGP is designed to reflect the state of the art for the field, as defined by current industry practices, leading voluntary federal government

¹ [90 Fed. Reg. 9,088](#) (Feb. 6, 2025).

² See IAPP, Comment to Nat'l Telecom. & Info. Admin. request for comments on artificial intelligence (AI) system accountability measures and policies (June 12, 2023) Docket No. [REDACTED] https://downloads.regulations.gov/NTIA-2023-0005-1224/attachment_1.pdf.

³ See J. Trevor Hughes, *The time to professionalize AI governance is now*, IAPP (Oct. 2, 2023) <https://iapp.org/news/a/the-time-to-professionalize-ai-governance-is-now/>.

initiatives like the influential NIST AI Risk Management Framework, and emerging regulatory requirements in the United States and around the world.

Consumer trust is good business.

Consumer trust can make or break new technologies. Public confidence in emerging tech takes years to build, but only a single harmful incident to crumble. In a groundbreaking survey-based report on privacy and consumer trust, IAPP found that over 80% of individuals said they are likely to stop doing business with companies that have been the victim of a cyberattack.⁴

Trust fuels market participation and fosters economic growth. For example, in the privacy domain, the spread of standards for transparency and control over personal data were driven by the convergence of consumer mistrust and competitively differentiated privacy practices, not just by government interventions.⁵ More than any other factor, it was the spread of qualified professionals across organizations—the professionalization of the practice of privacy—that built trust in the marketplace, enabling business growth while right-sizing risk.

AI systems are no different. As they proliferate, managing the public perception of risks and benefits is necessary for adoption to fuel the virtuous cycle of innovation.

Innovation flourishes with consistent standards of responsibility.

Professionalization also leads to uniform benchmarks for evaluating risks and assigning responsibility across firms. A shared understanding of these matters across a connected community of professionals reduces uncertainty, streamlines global compliance, and levels the competitive playing field.

Indeed, the lack of capable AI governance professionals presents a major barrier to the adoption of AI technologies across organizations, where surveys consistently show a lack of adoption of AI systems due to the persistence of skills gaps and an overestimation of risk.⁶ Another consistent barrier to AI adoption is the business friction created by a lack of clarity of where responsibility should lie for AI outcomes—with the developers who train systems, or with the users who deploy them.⁷ Even if not solved by top-down rules, these frictions will be mitigated by shared professional practices.

A competitive workforce requires knowledge of risk management.

Less than a decade ago, the field of data privacy sat in a similar nascent position, where expert navigation was needed to build consistency and trust into organizational

⁴ Müge Fazlioglu, *IAPP Privacy and Consumer Trust Report*, IAPP (March 2023)

<https://iapp.org/resources/article/privacy-and-consumer-trust-summary/>.

⁵ Hossein Rahnama & Alex Pentland, *The New Rules of Data Privacy*, HARV. BUS. REV. (Feb. 25, 2022),

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⁶ See, e.g., IBM AI GLOBAL ADOPTION INDEX 2024 (Jan. 2024), <https://newsroom.ibm.com/2024-01-10-Data-Suggests-Growth-in-Enterprise-Adoption-of-AI-is-Due-to-Widespread-Deployment-by-Early-Adopters>.

⁷ See, e.g., U.S. HOUSE OF REPRESENTATIVES, 118TH CONGRESS, BIPARTISAN HOUSE TASK FORCE ON ARTIFICIAL INTELLIGENCE (December 2024), <https://obernolte.house.gov/AITFReport> (supporting “the development of standards for liability related to AI issues”).

practice. Working together, a global community emerged to build the training, certification, and knowledge-sharing opportunities that led to the development of mature and interdisciplinary privacy functions within organizations today.⁸

IAPP believes that the ongoing work to spread AI governance practices across organizations will benefit from professionalization in the same way, centered within a workforce that is trained, credentialed, and connected to keep pace with increasing complexity and risk. The substantial gap between the demand for experts to implement tailored AI governance practices and the professionals who are ready to do so represents a significant barrier to AI innovation and competitiveness.

Luckily, a multi-faceted community of AI governance stakeholders is already emerging, from teams within developers and deployers to vendors, assurance toolsets, and research and standards setting organizations in the public and private sector.⁹

In short, no matter which tools you pursue in the Administration's AI Action Plan, please keep in mind the people who will do the work.

To achieve an efficient and long-lasting AI ecosystem, the United States must prioritize the professionalization of the AI governance workforce. This approach guarantees that risk-aware innovation can flourish, benefitting consumers, businesses, and the U.S. competitive standing on the global stage.

We thank OSTP, NSF, and the Administration for considering these comments.

Respectfully submitted,

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⁸ For more on the specific mechanisms that help to lead to professionalization via regulatory intervention or market forces, see generally, IAPP's comment to the NTIA RFC on AI system accountability measures and policies, *supra* at n.2.

⁹ For more on the current landscape of AI governance stakeholders, see Ashley Casovan & Richard Sentinella, *Mapping and Understanding the AI Governance Ecosystem*, IAPP (Feb. 2025), <https://iapp.org/resources/article/mapping-ai-governance-ecosystem/>.

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